SHAPING TOMORROW · DECISION INTELLIGENCE

The Deadlines Hardened, the Mandate Softened

Edition 2 in the Belastingdienst series. Previous Decision Intelligence report: 'Capacity Becomes Strategy' (April 2026).

Cycle: 15 July 2026 · Audience: Board, DG, CIO/IV, CFO, Toezicht · Horizon: 6 to 18 months primary, 2 to 5 years secondary

Read estimate: 3 min Executive Synthesis · 27 min full read

Contents

risk · opportunity · mixed/neutral · impact × likelihood: high · med · low

What you'll learn

1. Why the binding constraint this cycle moved from inside the tax office to upstream in the coalition: the machinery may be ready before the mandate is.
2. Why three legally fixed deadlines – Box 3 in 2028, the EU AI Act on 2 August 2026, and the end of the customs de-minimis – now collide against one audited capacity pool.
3. Why "change-capacity", not headcount, is becoming the number that governs what the Belastingdienst can deliver.
4. Why the algorithmic-legitimacy crisis and the GenAI-first taxpayer are two ends of the same question: whether data-driven tax can be both lawful and useful.

Key takeaways

1. The Court of Audit (20 May 2026) recorded five persistent imperfections involving the Belastingdienst – two new in 2025 – and warned legacy systems handling €233.6bn could eventually fail to support collection.
2. The Wet werkelijk rendement box 3 passed the Tweede Kamer for a 2028 start; the Eerste Kamer is pressing for softening amendments that compress the runway.
3. More than fifty Belastingdienst algorithms have been judged unlawful; the EU AI Act's high-risk obligations bind on named enforcement systems from 2 August 2026.
4. The EU has ended the €150 customs de-minimis with a per-parcel fee running to 1 July 2028, turning billions of low-value parcels into dutiable, reportable events.

Executive Synthesis

Why this matters now

This cycle is unusually calendar-bound. The AI Act high-risk regime binds on **2 August 2026**; the end-of-summer **2026 budget** is the first real test of whether the Jetten cabinet can decide; the customs flat-fee regime is already live and runs to **1 July 2028**; the Eerste Kamer is actively seeking Box 3 amendments that compress the runway to **2028**; and the filing season will again see citizens turn to GenAI as a first-line adviser. Each is a dated fixture, not a diffuse trend.

Why these four themes. They are selected against the mechanisms most likely to move the Belastingdienst's value over two to five years: the internal capacity and marquee legislative load that gate everything else (Theme 1); the legitimacy-and-regulation ceiling on data-driven enforcement (Theme 2); the cross-border architecture the organisation must execute inside (Theme 3); and the service model taxpayers actually use (Theme 4). A standalone political-reform-window theme was dropped because the stalling of the Jetten cabinet reads better as the backdrop to all four; a standalone workforce-continuity theme was folded into the capacity crunch, where the audit evidence now sits.

What has materially changed since April

April's cycle, "Capacity Becomes Strategy", framed capacity as the binding constraint and a reform window as the opportunity. Three months on, the tension has inverted: the deadlines have hardened into law while the mandate to meet them has softened. The Wet werkelijk rendement box 3 has passed the Tweede Kamer for a 2028 start; the EU AI Act's high-risk obligations bind from 2 August 2026; and the EU has agreed to end the €150 customs de-minimis with a temporary per-parcel fee running to 1 July 2028. Against that, the Jetten minority cabinet (sworn in 23 February) needs roughly ten extra seats for every measure and has visibly lost tempo, and on 20 May the Court of Audit formally graded the capacity problem with five imperfections and a warning about the €233.6bn the legacy systems carry.

The deadlines have hardened into law while the mandate to meet them has softened.

The five risks and opportunities dominating leadership attention

1. **Deadline collision.** Three legally fixed programmes (Box 3 2028, AI Act 2026, customs/ViDA) queue against a single, audited capacity pool that cannot serve all three at pace.
2. **Legitimacy ceiling.** Fifty-plus algorithms judged unlawful plus AI Act high-risk duties cap enforcement exactly as AI-enabled fraud and taxpayer GenAI use scale.
3. **Decision-supply risk.** A stalling minority cabinet may not deliver the fiscal and design decisions the 2028 build needs, on time or stably.
4. **Service opportunity.** The GenAI-first taxpayer is a chance to lead on supervised, authoritative assistance rather than cede the interaction to unmanaged tools.
5. **Modernisation-by-mandate opportunity.** The ViDA real-time-reporting build can be sequenced to retire the legacy debt the audit flags, turning an obligation into a lever.

Three concrete leadership decisions that cannot be deferred

1. **Sequence the three hard deadlines explicitly.** Decide, and document, which of Box 3, ViDA and AI-Act remediation has first call on scarce change-capacity, and where a deliberate, disclosed delay is the least-bad option.
2. **Set the posture on the AI Act cliff before 2 August.** Confirm which enforcement systems are in high-risk scope, what remediation or suspension each needs, and the legal fallback if a live tool must come offline.
3. **Take a position on the GenAI taxpayer.** Decide whether to lead with a supervised assistant on the Belastingdienst's own data, or accept the error-and-trust risk of citizens using unmanaged tools by default.

A surprise worth leadership attention

The under-priced question is not whether the Belastingdienst can build fast enough – it is whether the political system can *decide* fast enough. For a decade the binding constraint was internal (legacy IT, capacity). This cycle, for the first time, the more dangerous bottleneck may be external and upstream: a minority cabinet that cannot supply stable decisions on the very reforms the organisation is legally required to implement. The Board should ask what its plan is if the machinery is ready before the mandate is.

Where this analysis could be wrong

The synthesis rests on one load-bearing assumption: that the three hard deadlines will actually hold on their stated dates. If the AI Act's public-sector high-risk classification is phased, carved out or softened in national implementation – the AP itself warns the cabinet is behind on implementation – or if Box 3 slips again from 2028 as it has slipped before, the "deadline collision" reframes into a more familiar capacity-planning problem. The evidence that would force revision: a formal transitional-relief instrument for public-authority AI, or a government decision to move the Box 3 start year. Watch both through autumn 2026.

Audience Snapshots

The same cycle, read four ways – the one thing each leadership function should take from it.

CIO / IV

Change-capacity is the scarce asset

Three programmes (Box 3 2028, ViDA 2030, AI-Act remediation) want the same change-capacity at once, and the audit newly names software change-management as an imperfection.

Govern the safe rate of change, not headcount; sequence the build and make the trade-offs explicit.

TOEZICHT & HANDHAVING

A legal ceiling on data-driven enforcement

Fifty-plus algorithms judged unlawful and AI Act high-risk duties from 2 August 2026 cap enforcement tooling exactly as AI-enabled fraud scales.

Remediate to the strictest plausible reading and hold a legal fallback for any system that must come offline.

CFO / DOUANE

A customs surge before the systems are ready

The end of the €150 de-minimis makes billions of parcels dutiable now, while ViDA reporting is a 2030 build and the audit already calls the e-commerce VAT chain weak.

Treat customs/VAT e-commerce as a near-term continuity risk with an interim operating plan.

BESTUUR / DG

The constraint moved to the coalition

The deadlines are fixed in law; the Jetten minority cabinet's ability to decide is not. The machinery may be ready before the mandate is.

Protect scarce capacity from political churn and put deliberate delays to politics openly.

Themes

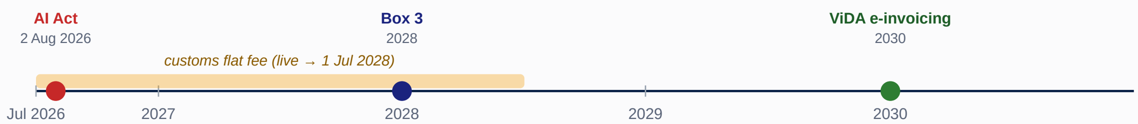
The cycle's signals are organised into four themes, ranked by impact on near-term decisions. ***Immediate****: changes decisions in the next two to three quarters.* ***Near-Term****: changes operating position over the next twelve months.* ***Longer-Range****: a multi-year shift to track each cycle.*

1. Box 3 and the audited capacity crunch

IMMEDIATE

Capacity is no longer an internal management worry but an audited, on-the-record constraint – and the Box 3 actual-return build for 2028 is the load that will test it to its limit. The Court of Audit (20 May 2026) recorded five persistent imperfections involving the Belastingdienst, two of them new in 2025 (software change-management and EU-VAT e-commerce), and warned that legacy systems processing €233.6bn risk eventually being unable to support collection. The Wet werkelijk rendement box 3 has passed the Tweede Kamer for a 2028 start, and the workforce – despite record recruitment – remains understaffed against a demographically tightening market. The real capacity metric is not headcount but the safe rate of change.

The deadline stack, 2026–2030 – three hard dates, one capacity pool



Dates fixed in EU and Dutch law; the customs bridge and ViDA build overlap the Box 3 window. Sources: EU DG TAXUD, AP, Rijksoverheid, VATupdate (see register).

- Trade reporting on the audit confirms the Belastingdienst still needs years to modernise core IT, keeping legacy risk live across the Box 3 and ViDA windows.
- The Eerste Kamer is pressing for softening amendments, so the design is still moving late in the build; a bridging *tegenbewijsregeling* covers 2026–2027.
- The competing legacy workload has not cleared: the Court of Audit judged the childcare-benefits recovery operation's additional-damage track "worrying". [Data currency: verify – source is 6–12 months old]
- Forecast anchor: UWV projects sustained demographic labour shortages, tightening the market for the tax and IT specialists the build depends on.

Weak Signals to Watch

- **WEAK SIGNAL** "Software change-management" as a *newly named* imperfection suggests the safe rate of change, not headcount, is becoming the reported constraint. Would gain weight if the 2026 Stand van de uitvoering explicitly rations new-policy implementation by change-capacity.
- **WEAK SIGNAL** Eerste Kamer pressure could mutate the Box 3 design late in the build. Would gain weight if the Senate tables substantive amendments that change the data the system must ingest.

The Strongest Counter-Argument

The pessimistic reading may over-weight the audit. Persistent imperfections are, by definition, known and managed; the Belastingdienst has delivered major changes before while carrying legacy debt, and record hiring shows the capacity line is moving. "Capacity crunch" has been the standing narrative for years without collection failing – the €233.6bn has kept flowing. The cross-domain analogue is large-bank core-banking replacement, where the audited "legacy time-bomb" was real but resolved through phased, unglamorous migration rather than the predicted collapse. The risk is crying wolf: treat every deadline as existential and you lose the ability to prioritise.

Decision link: Strategic Implications 1 – sequence the deadlines and govern change-capacity.

2. The algorithmic legitimacy cliff

IMMEDIATE

The Belastingdienst's data-driven enforcement now faces a hard legal ceiling – more than fifty algorithms judged unlawful and AI Act high-risk duties from 2 August 2026 – at the exact moment AI-enabled fraud makes that enforcement most needed. The Autoriteit Persoonsgegevens has assessed more than fifty Belastingdienst algorithms as unlawful (registration required), a finding since formalised into a strengthened AP supervision arrangement over the Belastingdienst (February 2026); the organisation received a Big Brother Award in February, and the EU AI Act's high-risk obligations bind on public-authority enforcement systems from 2 August. The danger is less the deadline than the unsettled ground beneath it: the AP warns the cabinet is behind on implementation, so classification and guidance are still forming as the obligations arrive.

- The AP's algorithm-supervision reporting frames unlawful, opaque government algorithms as a systemic fundamental-rights risk, with tax authorities repeatedly cited.
- Legal-sector commentary amplifies the AP position that AI is pressuring fundamental rights, sustaining scrutiny.
- Case-law commentary shows courts increasingly scrutinising algorithmic risk-selection, tightening the legal envelope around automated enforcement.
- Forecast anchor: practitioner guidance sets out the staged 2026 AI Act deadlines and high-risk conformity duties Dutch public bodies must meet – the compliance calendar is fixed.

Weak Signals to Watch

- **WEAK SIGNAL** The AP is positioned as coordinating supervisor while its guidance is still forming. Would gain weight if the AP issues public-sector-specific high-risk guidance naming enforcement-selection tools.
- **WEAK SIGNAL** As the Belastingdienst is constrained on its own AI, AI-enabled fraud scales on the other side. Would gain weight if the organisation reports a measurable rise in AI-assisted fraud in its 2026 handhaving data.

The Strongest Counter-Argument

The ceiling may bind less tightly than the headlines imply. The AI Act phases obligations over years, carries public-interest carve-outs, and national implementation is unsettled – the same immaturity that creates risk can create room, and a "more than fifty unlawful" headline can conflate documentation gaps with substantive breaches. The cross-domain analogue is GDPR in 2018: the predicted enforcement wall against public bodies arrived far more slowly and negotiably than the countdown coverage suggested, and pragmatic compliance beat pre-emptive paralysis. [Signal confidence: limited – corroboration sought] on the precise scope of "high-risk" for tax-enforcement tools.

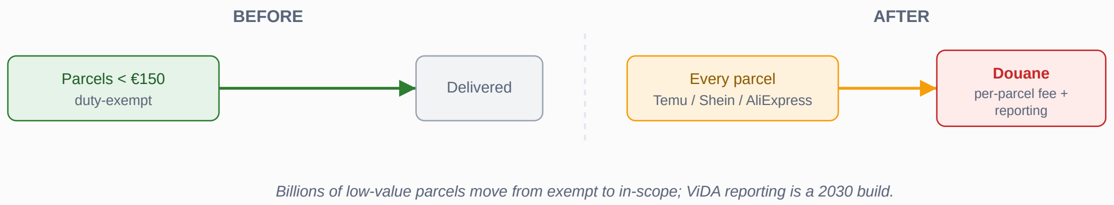
Decision link: Strategic Implications 2 – set the AI Act posture before 2 August; remediate to the strictest reading.

3. The e-commerce customs shock

NEAR-TERM

The end of the €150 customs de-minimis turns billions of ultra-low-value parcels into dutiable, reportable events – a Douane and VAT execution surge arriving before the systems and the ViDA reporting build are ready. EU member states have agreed to end the exemption, and the Commission has published the legal text for a temporary per-parcel flat fee running to 1 July 2028. In parallel the adopted ViDA package mandates real-time reporting and e-invoicing, with the Netherlands orienting to a 2030 mandate. This is not a forecast: the Court of Audit already flags EU-VAT e-commerce as a 2025 control weakness – before the volume multiplies.

The de-minimis change – from exempt flow to dutiable, reportable events



Schematic. The demand shock is live; the enabling infrastructure (ViDA) is a 2030 build and the audit already calls the chain weak. Sources: EU DG TAXUD, Euronews, Rekenkamer (see register).

- The Belastingdienst has begun publishing ViDA implementation information for software and message-exchange partners – an early sign the build is under way.
- The trade body evofenedex confirms ViDA mandates real-time VAT reporting, a systems shift for business and authority alike.
- Adoption and phasing are confirmed by Tier-2 advisers: the ViDA package is formally adopted. [Data currency: verify – source is 6–12 months old]
- Forecast anchor: the temporary flat fee is legally fixed to run until 1 July 2028, when the full customs framework is due.

Weak Signals to Watch

- **WEAK SIGNAL** Industry analysts question whether the small fee will slow the billions of parcels from Temu and Shein. Would gain weight if post-implementation parcel data shows volumes flat or rising, confirming the workload shock persists.
- **WEAK SIGNAL** The gap between the parcel shock (now) and the ViDA build (2030) could force interim manual workarounds. Would gain weight if Douane signals a clearance backlog in late-2026 operational reporting.

The Strongest Counter-Argument

The "shock" framing may misread who carries the load. Much of the regime pushes compliance and data onto platforms and intermediaries through deemed-supplier and IOSS-style mechanisms, so the marginal per-parcel work may fall more on Temu, Shein and carriers than on Douane. If platforms build the reporting, the authority's job becomes assurance, not manual processing. The counter-counter is that the fee may not curb volumes at all – so even a platform-led model leaves the authority assuring a rising tide. The banking analogue is PSD2 open-banking reporting: the burden shifted to regulated firms, but the supervisor's assurance workload still grew.

Decision link: Strategic Implications 3 – near-term continuity plan; ViDA as modernisation lever.

4. The GenAI-first taxpayer and embedded tax

LONGER-RANGE

Taxpayers have already made generative AI their first-line tax adviser, so the choice is no longer whether AI enters the interaction but whether the Belastingdienst supervises it or cedes it. Mainstream Dutch media now openly advise citizens to use AI to complete their return; the OECD's Tax Administration 2025 documents peers moving toward embedded, real-time "Tax Administration 3.0"; and the Belastingdienst is itself exploring agentic AI. The Netherlands' long-standing pre-filled return (*vooraf ingevulde aangifte*) is a strategic asset most administrations lack – the state already holds most of the taxpayer's data – making the Belastingdienst uniquely placed to offer a supervised assistant grounded in authoritative data rather than cede the interaction to a public chatbot guessing from general text. [Data currency: verify – OECD source is 6–12 months old]

- The OECD's Tax Administration 2025 maps the transition to machine-consumable rules and tax embedded in taxpayers' own software – where the pre-filled return points.
- The Jaarplan 2026 keeps service and the pre-filled return as a stated priority; the UHS already commits to making compliance easy.
- Forecast anchor: OECD comparative data projects continued year-on-year growth in members deploying AI in taxpayer services through 2026–2027 – the peer trajectory is set, not speculative.
- The Stand van de uitvoering 2026 documents where service ambition already meets execution limits.

Weak Signals to Watch

- **WEAK SIGNAL** The Belastingdienst's agentic-AI exploration could shift the model from "answer questions" to "complete the task". Would gain weight if a production pilot on real taxpayer data appears in the 2027 Jaarplan.
- **WEAK SIGNAL** Rising GenAI reliance is already linked to more filing errors. Would gain weight if the Belastingdienst's own correction volumes show a measurable AI-attributable rise in the 2026 season.

The Strongest Counter-Argument

The GenAI-first taxpayer may be a smaller opportunity than it looks, because trust and reliability cut against it. Dutch advisers warn AI is raising error rates, and a supervised assistant inherits the exact legitimacy exposure of Theme 2, so the Belastingdienst may rationally move slowly. The cross-domain analogue is banking's first-generation chatbots: they damaged trust where they over-promised, and the winners launched narrow, supervised and accurate rather than broad and impressive.

Decision link: Strategic Implications 4 – take a position on a supervised assistant, gated behind Theme 2.

Strategic Implications

1. Sequence the three hard deadlines and govern change-capacity, not headcount

The constraint is now the safe rate of change, and three programmes want it at once. The Board's real lever is prioritisation with disclosure: decide which deadline gets first call on change-capacity, and put any deliberate delay to politics openly through the Stand van de uitvoering rather than absorbing it silently.

Action: adopt "change-capacity" as the Board-reported capacity metric; publish an explicit sequencing decision across Box 3, ViDA and AI-Act remediation. DECIDE

Draws on Theme 1 (Box 3 and the audited capacity crunch).

2. Set the AI Act posture before 2 August and remediate to the strictest plausible reading

The AI Act high-risk obligations apply from 2 August 2026 whether or not remediation is complete. The trade-off is enforcement reach against legal exposure; the prudent posture is to remediate hard and hold a legal fallback for any system that must come offline. This also gates Theme 4.

Action: confirm the high-risk inventory, complete conformity assessment and register remediation, and pre-agree the enforcement fallback. DECIDE

Draws on Theme 2 (the algorithmic legitimacy cliff).

3. Treat customs/VAT e-commerce as a near-term continuity risk; make ViDA the modernisation lever

The demand shock is live now; the enabling infrastructure is a 2030 build and the audit already calls the chain weak. Run an interim customs operating plan, and govern ViDA as a platform programme so the mandated investment also retires the legacy debt Theme 1 flags.

Action: stand up an interim Douane/VAT e-commerce continuity plan; architect ViDA to retire legacy, not patch it. PREPARE

Draws on Theme 3 (the e-commerce customs shock).

4. Take a position on a supervised GenAI assistant – lead or cede

Doing nothing is not neutral: citizens already use unmanaged tools, so the default accepts the error-and-trust risk without the service upside. A narrow, supervised assistant grounded on pre-filled data captures the upside while holding the legitimacy line – but only if sequenced behind, not ahead of, the AI Act remediation in Theme 2.

Action: decide the posture now and the build pace later; if leading, scope a single high-accuracy use case first. PREPARE

Draws on Theme 4 (the GenAI-first taxpayer and embedded tax).

Scenario Matrix

Scenarios describe operating environments we may need to live in and adapt to – not discrete shock events.

These scenarios are used to stress-test decisions already under consideration, not to generate new ones.

STALLED MANDATE

STABLE MANDATE

EXECUTION CAPACITY

⚡ "Machinery Without a Driver"

Capacity freed · stalled mandate

The Belastingdienst gets its house in order – modernisation advances, algorithms are remediated, ViDA lands – but the political system cannot supply stable decisions. The budget slips, Box 3 keeps moving in the Senate, and capacity is spent absorbing churn rather than delivering. The constraint moves upstream, from the tax office to the coalition.

Indicators: 2026 budget delayed or passed only on confidence-and-supply patches; Box 3 amended late, forcing rework; Belastingdienst reports "ready, awaiting decision" in the Stand van de uitvoering.

🌱 "Clean Delivery"

Capacity freed · stable mandate

The Jetten cabinet stabilises enough to pass a workable budget and confirm the Box 3 design, while modernisation frees enough change-capacity to serve the deadline stack. The Belastingdienst executes 2028 on plan, remediates ahead of the AI Act, and runs the customs surge through maturing systems. The planning best case, and the least likely given the audit and coalition arithmetic.

Indicators: 2026 budget passes without a confidence crisis; Eerste Kamer adopts Box 3 without runway-resetting amendments; Rekenkamer closes an imperfection; AI Act remediation completes before 2 August.

🌪️ "The Double Bind"

Capacity trapped · stalled mandate

The worst case, and not the least likely: the coalition cannot decide and the machinery cannot deliver. Hard deadlines arrive into political churn and constrained capacity at once. The Belastingdienst is exposed on every front – an unlawful-algorithm overhang without firm guidance, a parcel surge without infrastructure, a Box 3 design that will not settle – and legitimacy erodes from both under-delivery and enforcement gaps.

CAPACITY TRAPPED

Indicators: budget failure coincides with an AI Act enforcement action; Box 3 slips again from 2028; Douane backlog plus a new Rekenkamer imperfection; SCP trust indicators turn down.

🧭 "Mandate Without Machinery"

Capacity trapped · stable mandate

Politics decides – the budget passes, Box 3 is confirmed, customs reform is willed – but the machinery cannot keep up. Legacy debt, the software-change-management imperfection and the workforce gap mean deadlines are missed or met with manual workarounds Belastingdienst is forced to ration new policy openly to a government that now expects delivery.

CAPACITY FREED

Indicators: Box 3 or ViDA milestones publicly slip on capacity grounds; Rekenkamer adds rather than closes imperfections; Douane reports clearance backlogs; new-policy implementation formally rationed by change-capacity.

Scenario Assumptions Register

Assumptions that, if wrong, would most rapidly invalidate the scenario framing:

Assumption	If wrong, what fails first
The three hard deadlines hold on their stated dates.	The "deadline collision" collapses into an ordinary capacity-planning problem; the urgency axis loses force.
Political decision-supply and internal capacity are independent uncertainties.	If they move together, the 2×2 collapses toward a single diagonal.
The Jetten minority cabinet survives 2026–2027 in some form.	A fresh election resets the reform agenda entirely, replacing "stalled mandate" with "no mandate".
Customs/VAT e-commerce load falls materially on the authority, not wholly on platforms.	If platforms absorb it via deemed-supplier rules, Theme 3 shrinks from a shock to an assurance task.

What We Are Not Planning For

Four postures held out of the plan because the evidence base does not yet justify resourcing against them. Each carries the reinstatement trigger that would change that judgement.

1. A near-term collapse of core tax collection

The legacy-IT risk is real and audited, but the €233.6bn continues to be collected and the imperfections are known and managed. We treat this as a multi-year modernisation risk to govern, not a this-cycle failure to plan against.

Reinstatement Trigger: *a collection or refund outage attributable to legacy-system failure, or a Rekenkamer escalation from "imperfection" to a formal adverse finding on continuity.*

2. A wholesale reversal of the de-minimis / customs reform

The direction is set in EU law with a dated bridge to 2028. We plan for implementation and volume, not for the reform being unwound.

Reinstatement Trigger: *a Council decision to suspend or materially delay the flat-fee regime, or a legal challenge that stays it.*

3. A blanket AI Act exemption for tax-enforcement systems

We are not betting on a carve-out that removes the high-risk obligations from enforcement tooling. The prudent default is to remediate to the strictest plausible reading and treat any relief as upside.

Reinstatement Trigger: *a formal national or EU transitional-relief instrument that explicitly exempts or phases public-authority enforcement AI.*

4. A rapid political stabilisation that clears the decision backlog

We do not plan on the Jetten cabinet suddenly regaining reform momentum. We plan for a slow, contested decision environment and treat clean, timely decisions as the favourable surprise.

Reinstatement Trigger: *a passed 2026 budget plus a confirmed, unamended Box 3 design, signalling restored decision-supply.*

Discussion Points

1. If capacity can serve only two of Box 3, ViDA and AI-Act remediation at pace, which do we deprioritise – and will we put that choice to politics openly?
2. If the 2026 budget slips, do we hold, slow or continue the 2028 Box 3 build on the assumption the design will still land?
3. If a live enforcement algorithm must come offline on 2 August 2026, what is our fallback, and have we quantified the revenue-at-risk of the gap?
4. Do we lead on a supervised GenAI taxpayer assistant, or accept the default of citizens using unmanaged tools – and which carries more legitimacy risk?
5. Should ViDA be governed as a modernisation programme rather than a compliance project, even if that raises its cost and visibility now?
6. Is "change-capacity", not headcount, the right capacity metric to report to the Board each cycle?
7. Horizon-scan question If the software-change-management imperfection means we cannot safely change systems fast enough, should we formally cap the number of new-policy implementations we accept per year?
8. Horizon-scan question If platforms absorb most customs/VAT e-commerce reporting under deemed-supplier rules, does our role shift from processing to assurance – and are we structured for that?
9. Horizon-scan question If the AI Act's public-sector high-risk scope is settled only through an enforcement case, how do we ensure we are never the test case?
10. If the constraint is now the coalition rather than the tax office, what is our operating plan for "ready before the mandate is", and how do we protect capacity from political churn?

Source Confidence Register

Format: Source · Tier · Date · Claim supported. Sources flagged *(potentially dated)* are 6–12 months old. Tier 4 vendor-sourced items are treated directionally.

Theme 1 – Box 3 and the audited capacity crunch

Source	Tier	Date	Key claim
Algemene Rekenkamer – Resultaten verantwoordingsonderzoek 2025: Ministerie...	**T1**	20 May 2026	Five persistent imperfections involving the Belastingdienst (two new in 2025: software change-management and EU-VAT e-commerce); legacy systems processing EUR 233.6bn risk eventually being unable to support collection.
Rijksoverheid – Tijdlijn Wet werkelijk rendement box 3	**T1**	evergreen	Box 3 actual-return system targeted for 2028, with a bridging regime and tegenbewijsregeling for the interim years.
Deloitte Netherlands – Wetsvoorstel Wet werkelijk rendement box 3 aangenome...	**T2**	25 Feb 2026	The Wet werkelijk rendement box 3 (36748) passed the Tweede Kamer; now at the Eerste Kamer, 2028 intended start.
PwC Netherlands – Nieuw box 3-stelsel: Eerste Kamer wil verzachtingen	**T2**	3 Jun 2026	The Eerste Kamer is pressing for softening amendments, adding late-stage design uncertainty to the 2028 build.
Belastingdienst – Organisatie & Personeel (Jaarplan 2026 in het ko...	**T1**	evergreen	The Belastingdienst is recruiting at record levels but remains under-staffed against an ageing workforce and a tight labour market.
Rijksoverheid – Voortgangsrapportage Hersteloperatie Toeslagen (sept...	**T1**	11 Feb 2026	The childcare-benefits recovery operation continues to advance slowly, an open-ended workload competing for Belastingdienst capacity.
Taxence – Stand van de uitvoering Belastingdienst 2026	**T3**	18 Jun 2026	The 2026 Stand van de uitvoering documents where service ambition meets execution limits and the dilemmas put to politics.
Belastingdienst – Jaarplan Belastingdienst 2026	**T1**	15 Jan 2026 (anchor)	The 2026 annual plan sets the UHS pillars and service/modernisation priorities; the priority source for the strategy mapping.

Theme 2 – The algorithmic legitimacy cliff

Source	Tier	Date	Key claim
Follow the Money – Meer dan 50 algoritmes van de Belastingdienst zijn o... (registration required)	T2	8 Nov 2025 (anchor)	The AP assessed more than fifty Belastingdienst algorithms as unlawful, exposing the enforcement estate to remediation and legal risk.
Rijksoverheid (Ministerie van Financiën) – Update Toezichtarrangement Autoriteit Persoonsgegeve...	T1	12 Feb 2026	The AP's supervision arrangement over the Belastingdienst's algorithms and data use has been formalised and updated, a live, in-window marker of the legitimacy pressure.
Autoriteit Persoonsgegevens – EU AI Act: risk groups and obligations	T1	evergreen	High-risk AI-system obligations phase in from 2 August 2026; public-authority enforcement and benefit-determination systems fall in scope.
Accountancy Vanmorgen – Belastingdienst krijgt Big Brother Award om onrechtm...	T3	23 Feb 2026	The Belastingdienst received a Big Brother Award (Feb 2026) for unlawful algorithm use, sustaining reputational pressure.
iBestuur – AP: Kabinet moet haast maken met de uitvoering van d...	T2	5 Mar 2026	The AP warns the cabinet is behind on implementing the AI Act, leaving supervisory structures immature as the August 2026 obligations arrive.
Autoriteit Persoonsgegevens – Coordination of algorithmic and AI supervision	T1	evergreen	The AP frames unlawful, opaque government algorithms as a systemic fundamental-rights risk, with tax authorities repeatedly cited.
Mr. Online – Autoriteit Persoonsgegevens: door AI komen onze gron...	T2	6 Mar 2026	Legal-sector reporting amplifies the AP position that AI is pressuring fundamental rights.
Jongbloed Fiscaal Juristen – Algoritme, signalering en risicoclassificatiemodelle...	T3	evergreen	Case-law commentary shows courts scrutinising algorithmic risk-selection, tightening the legal envelope around automated enforcement.

Theme 3 – The e-commerce customs shock

Source	Tier	Date	Key claim
European Commission, DG Taxation and Customs Union – Guidance and legal text on temporary flat fee on low...	T1	8 Jun 2026	The EU sets a temporary flat customs handling fee on low-value consignments, bridging the removal of the EUR 150 duty exemption, applicable until 1 July 2028.
Euronews – EU ends tax loophole exploited by SHEIN, Temu and Al...	T2	30 Jun 2026	EU member states agree to end the EUR 150 de-minimis exemption and levy a per-parcel fee, targeting billions of parcels from Chinese platforms.
European Commission, DG Taxation and Customs Union – VAT in the Digital Age (ViDA)	T1	evergreen	The adopted ViDA package introduces mandatory e-invoicing, digital reporting and platform deemed-supplier rules, phasing to 2035.
VATupdate – Netherlands sets 2030 B2B e-invoicing mandate, eyes ...	T2	15 Mar 2026	The Netherlands is orienting to a 2030 B2B e-invoicing mandate and 2032 domestic e-reporting under ViDA.
evofenedex – ViDA verplicht realtime btw-rapportage en e-facturatie	T3	evergreen	ViDA mandates real-time VAT reporting and e-invoicing, a systems shift for business and the tax authority alike.
Belastingdienst (ODB) – Informatie VAT in the Digital Age / ViDA (Ondersteun...	T3	evergreen	The Belastingdienst is publishing ViDA implementation information for software and message-exchange partners, an early sign the build is under way.
Algemene Rekenkamer – Onvolkomenheid EU-btw e-commerce (Verantwoordingsond...	T1	20 May 2026	The Court of Audit flags EU-VAT e-commerce as a new 2025 imperfection, a control weakness before the de-minimis abolition multiplies the volume.

Theme 4 – The GenAI-first taxpayer and embedded tax

Source	Tier	Date	Key claim
OECD Forum on Tax Administration – Tax Administration 2025: Comparative Information on ...	T1	17 Nov 2025 (anchor)	Leading administrations are moving toward embedded, real-time 'Tax Administration 3.0', with GenAI in production for taxpayer services in a growing share of members.

Source	Tier	Date	Key claim
Belastingdienst – Uitvoerings- en handhavingsstrategie (UHS)	T1	evergreen	The enforcement-and-service strategy commits to meeting taxpayers where they are and making compliance easy, the doctrinal basis for embedded, pre-filled service.
WNL – Tip voor het invullen van je belastingaangifte: 'Geb...	T2	30 Apr 2026	Mainstream Dutch media now advise taxpayers to use GenAI to help complete their return, evidence GenAI is a first-line tax adviser.
ANP / Trustoo – Belastingadviseurs waarschuwen: Box 3 en AI zorgen v...	T2	26 Feb 2026	Tax advisers report that Box 3 complexity and taxpayers' AI use together drive more errors in returns, a counter-signal to GenAI self-service.
iBestuur – Belastingdienst verkent inzet 'agentic AI'	T3	20 Apr 2026	The Belastingdienst is exploring agentic AI, signalling ambition to move beyond static portals toward task-completing assistance.

Continuity Ledger – resolving April's dated commitments

April obligation	Verdict	Date	Resolution
Capacity as the binding constraint on all five workstreams (April board-critical risk).	CONFIRMED	20 May 2026	Formally graded by the Rekenkamer: five imperfections, two new; €233.6bn legacy risk. Now Theme 1.
Regulatory ceiling on the Belastingdienst's own AI (April board-critical risk).	CONFIRMED	Feb–Aug 2026	50+ algorithms unlawful; AI Act high-risk binds 2 Aug 2026. Now Theme 2.
Cross-border fiscal harmonisation as opportunity and squeeze (April Theme 3).	REOPENED	Jun 2026	Sharpened into a concrete customs shock: de-minimis abolition + ViDA. Now Theme 3.
The Jetten reform window as opportunity (April Theme 4 / scenario axis).	BROKEN	May 2026	Window narrowed: the cabinet is "vastgelopen". Now the backdrop, not a theme.
Embedded / hyper-personalised tax as the	CONFIRMED	Apr–May 2026	GenAI-first taxpayer behaviour now observable; agentic-AI exploration under way. Now Theme 4.

April obligation	Verdict	Date	Resolution
service future (April Theme 4).			

Conflict notes: Two genuine source disagreements were weighted rather than resolved. (1) On Theme 2, the AP/FTM material and the AI Act deadline point to a hard, near-term constraint, while the phasing/carve-out reading suggests more room; the report weights the strict reading for planning, treating relief as upside, because under-preparing an enforcement-offline scenario costs more than over-compliance. (2) On Theme 3, sources conflict on whether the fee curbs volumes; the report weights the "volumes persist" reading (Tier-4, flagged directional) because it is the more demanding planning assumption for Douane. **Author-type coverage:** the set is strong on regulators, government, audit bodies, professional advisers and quality journalism, but thin on *academics, economists and investors* – a Dutch-fiscal-academic or CPB/WRR source would strengthen the next cycle, and no primary econometric estimate of the parcel-volume or Box 3 revenue effect was available within range.

Claim-Fidelity Appendix: Analyst inferences and editorial framing

This briefing carries analyst-generated interpretations that go beyond what any single source asserts. They are named here so a reader can trace the confidence line and disagree productively.

Analytical inferences carried by the body prose

- "The deadline collision" is an analyst frame linking three independently sourced obligations (Box 3 2028, AI Act 2026, customs/ViDA) into one pattern; no source treats them as a single stack.
- Reading the binding constraint as having moved "upstream to the coalition" is our interpretation: the sources establish both the stalling cabinet and the audited capacity limit as facts; the judgement that the political bottleneck is now the more dangerous one is ours.
- Casting "change-capacity", not headcount, as the true capacity metric is an inference from the Rekenkamer's newly-named software-change-management imperfection, not a claim the audit makes explicitly.
- Grading the April "Jetten reform window" as BROKEN is an editorial judgement on the EenVandaag reporting of the cabinet "vastlopen"; the source describes the stall, not the verdict.
- Treating the customs de-minimis change as a near-term continuity risk (rather than a 2030 IT-roadmap item) is a sequencing judgement contested by the platform-burden reading; we adopt the "authority still assures a rising tide" position.

Editorial framing

The title "The Deadlines Hardened, the Mandate Softened" is an editorial compression: the deadlines (Box 3 2028, AI Act 2 August 2026, the customs de-minimis to 2028) are fixed in law, while "the mandate softened" characterises the Jetten minority cabinet's diminished capacity to decide – a reading of the political reporting, not a claim any single source makes. The Futures Wheel is an analyst construction; its polarity and impact/likelihood weightings are judgements, not sourced data points.